

Deep Narayan Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 August 2022 · Writ - C No. 13057 of 2022 · Writ - C No. 13057 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ challenging a tehsildar's recovery certificate for electricity dues was disposed of without opinion on merits. The consumer was given liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing; coercive recovery was stayed for eight weeks or until that objection was decided, whichever was earlier.

FACTUAL SUMMARY

Deep Narayan Dubey challenged a recovery certificate dated 3 March 2022 issued by the Tehsildar, Fatehpur, for electricity dues raised by the Power Distribution Corporation, alleging that the demand was made without opportunity of hearing. The writ was listed on 7 May and 29 July 2022 for the licensee's instructions. On 16 August 2022, counsel for the corporation stated that the petitioner may file an objection against the demand, which would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy to writ

HOLDING

Without expressing any opinion on merits, a writ against a tehsildar's recovery certificate for electricity dues is disposed of with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, before the distribution licensee within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing; no coercive action on the impugned demand shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against recovery of electricity dues was disposed without merits adjudication, and the consumer was directed to a clause 6.5 objection before the licensee. ¶ 3

clause-6.5-statutory-remedy-disputed-bill The disputed demand underlying the recovery certificate was left to be examined on a clause 6.5 objection, to be decided after hearing within a fixed period. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE DATED 03.03.2022 AND THE UNDERLYING ELECTRICITY DEMAND

The Court expressed no opinion on merits and left the objection under clause 6.5 to the distribution licensee. ¶ 3